NOTICE OF ANNUAL GENERAL MEETING

33M APARTMENTS

33 MACKENZIE STREET, MELBOURNE VIC 3000
OWNERS CORPORATION NO. 1 PS634049H

Notice is hereby given that the Annual General Meeting of Members will be held
DATE: THURSDAY, 19TH FEBRUARY 2026
Registration commences at : 5:30 PM

LOCATION: via Zoom
https://us02web.zoom.us/j/82795368615?pwd=Y7vsgSLUIfvDPS5eC1ItSRh1zIPNNm.1

Online via Zoom
Meeting ID: 827 9536 8615
Passcode: 685107

MEETING PROCEDURE:

- **Proxy Forms** - If you are unable to attend the meeting, we request that you complete the attached proxy form nominating a member to vote on your behalf. When completing the Proxy Form please record all lots with which you are associated. For administration requirements and to assist the meeting starting on time, please submit all proxy forms directly to the secretary no later than **5:00pm Wednesday 18th February 2026.**

- **Committee Nomination Forms** - Should you wish to nominate for a position on the committee please complete the nomination form enclosed and return to our office. For administration requirements and to assist the meeting starting on time please submit to the secretary no later than **5:00pm Wednesday 18th February 2026.** Please note that there must not be more than one member of the committee from any one lot.

- **Arrears** - Only financial members may vote, be appointed to the committee, or give proxies as per Section 84 of the Owners Corporations Act 2006. A lot owner (or their proxy) is not entitled to vote on ordinary resolutions or stand for election to the committee if fees or amounts to the Owners Corporations are in arrears for that particular lot owner (s.94 and s.103(7) Owners Corporations Act 2006). Arrears must be paid in full not less than 4 business days prior to the meeting.

- **Voting** - As per Section 92 of the Owners Corporations Act 2006, unless otherwise resolved voting will be by show of hands, one vote per lot.

- **Agenda** - Once an item on the agenda has been dealt with, it will not be repeated for anyone arriving late to the meeting.

- **General Business** - As the Annual General Meeting is convened to meet the statutory requirements of the Owners Corporation there is no general business tabled at the meeting. Any general business items can be emailed to ben.quirk@tocs.co and will be tabled for the relevant committee to respond.

- **Questions –** If you have any questions in relation to any of the agenda items, please email these to ben.quirk@tocs.co at least 5 business days before the AGM.

MEETING RULES
The following rules apply to the procedure at the meeting.

Commencing the meeting

1. The meeting will commence exactly at the scheduled time.
2. The Owners Corporation Manager will take a roll of attendance from attendees at the meeting.

Conduct

3. The Chairperson presides over the meeting and the conduct of all present.
4. If you have a question, you must raise your hand and you must follow the directions of the Chairperson.
5. Disruptions of any type may result in that person being ejected from the meeting at the Chairperson's discretion.
6. No motion can be put forward for discussion while a motion is still being finalised.
7. Non-members will not be permitted to attend the meeting unless by prior invitation of the Committee.
8. If you are a proxy holder and you have not previously notified the Owners Corporation Manager, then you will need to notify the Owners Corporation Manager at the outset of the meeting and send via email your completed form to the Owners Corporation Manager.

Voting

9. All voting at the meeting will be conducted by show of hands. One vote per lot.
10. All motions are to be resolved by ordinary resolution.
11. Once an item on the agenda has been dealt with, it will not be repeated for anyone arriving late to the meeting.
12. Pursuant to section 94 of the Act, a lot owner who is in arrears for <u>any</u> amount owing to the Owners Corporation, is not entitled to:
    a. Vote on an ordinary resolution, either in person, by ballot or by proxy;
    b. Be appointed to the Committee; or
    c. Give proxies pursuant to section 94 of the Act.
13. The Owners Corporation Manager does not accept payment of arrears at the meeting by cheque or cash. Arrears must be paid in full not less than 4 business days prior to the meeting.
14. If a lot is owned by more than one party:
    a. Only one owner may be appointed to the Committee; and
    b. A proxy form entitling one owner to vote on behalf of the other owners must be completed and submitted to the Manager.
15. If a lot is owned in a company and the company wishes to be represented at the Annual General Meeting, the company must duly appoint a person under company seal.
16. There may be a delay in collation/calculation of all votes which will take place after the meeting to ensure accuracy.

We appreciate your co-operation.

Should you have any queries relating to this matter, please do not hesitate to contact our office on **1300 489 088** or via email **ben.quirk@tocs.co**

Kind Regards,
Benjamin Quirk
Senior Owners Corporation Manager & Specialist Consultant
For and On Behalf of 33M Owners Corporation
Owners Corporation Plan No. PS634049H

AGENDA

1. **REGISTRATION**
   Noting of attendance, proxies and apologies.

2. **QUORUM (s.77, s78(1) of the Act)**
   The meeting requires a quorum being 50% of lot owners or their representatives either by vote or lot entitlement of the Owners Corporation to attend in person or via proxy.

   If there is not a quorum the meeting will commence, and all decisions will become interim decisions of the Owners Corporation unless 25% of financial owners petition for the meeting to be recalled within 28 days after the meeting. On the 29th day following the meeting all meeting decisions will then be accepted as resolutions by the majority of Owners in favour.

3. **APPOINTMENT OF ANNUAL GENERAL MEETING CHAIRPERSON *(s.79 of the Act)***
   The members to resolve to appoint a chairperson of the meeting.

4. **CONFIRMATION OF PREVIOUS ANNUAL GENERAL MEETING MINUTES *(s.71(2)(i) of the Act)***
   Members to resolve to confirm the minutes of the Annual General Meeting for Owners Corporation, held on the 20TH November 2024 as a true and correct record. A copy of these minutes is included in the meeting attachments.

5. **PRESENTATION OF REPORTS *(s.79, s.115 of the Act)***

   a. **Owners Corporation Manager Report**
      Members to resolve to receive the Owners Corporation manager's report as tabled.

   b. **Committee Report**
      Members to resolve to receive the Committee activity report as tabled.

   c. **Building Manager's Report**
      Members to note that the Building Manager will be in attendance to provide a verbal report at the meeting.

6. **ACKNOWLEDGEMENT OF INSURANCE COVER (s.59, s.49, s.60 of the Act)**

6.1 Current Policy Confirmation

Members to acknowledge the current coverage of the Owners Corporation. Refer to summary below and policy schedule enclosed in this notice of meeting.

Insurer	Chubb Insurance Australia Limited
Named Insured:	OC 634049H
Policy Wording:	Residential Strata Insurance
Policy No.	93209890
Expiry	4.00pm on 31 August 2026
Buildings and Common Property	$228,788,273
Common Contents	$2,287,883
Catastrophe	$68636483
Machinery Breakdown	$100,000
Management Committee Liability Insurance	$ 5,000,000
Committee Liability:	$ 200,000
Excess:	
Total Premium:	$283,072.73

Members to note that the Owners Corporation policy does not cover individual lot contents items, such as carpets, temporary flooring, internal blinds and any other item not deemed part of the 'Building" per the policy wording. The owners corporation policy does not cover Public Liability within your lot, and this insurance is recommended for lot owners to obtain.

6.2 INSURANCE VALUATION

The last insurance valuation was completed 13 January 2023. An insurance valuation must be completed every 5 years as a minimum under Section 65(2) of the Act as a requirement, as per the Amendments Dec 2021. A valuation will be budgeted for in 2027/2028.

A copy of the valuation report can be provided upon request.

6.3 INSURANCE EXCESSES

Members to resolve that the payment of the excess imposed on all claims will be:

a. For claims made on the Owners Corporation insurance, the excess is payable by the proprietor or occupier making the claim unless otherwise agreed in advance by the Owners Corporation.

b. The Owners Corporation will only be responsible for the excess on an insurance claim where the damage or insurable event has been caused by an act or omission on or from common property or a common property service.

c. A lot owner will be liable for payment of the excess on an insurance claim where the damage or insurable event has been caused by an act or omission or flow of water from their private lot.

7. FINANCIAL STATEMENTS

7.1 Members to review and adopt the audited financial reports for **Owners Corporation**, as included in the meeting attachments, for the financial year **01 September 2024 to 31 August 2025**, showing the following balances:

Owners Corporation No.	Administration Fund
OC 1	$250,206.67

Owners Corporation No.	Maintenance Fund
OC 1	$633,336.23

*Members are asked to present any specific queries on financials to the manager a minimum of five days prior to the meeting in preparation.

8. PROPOSED BUDGET & OWNER CORPORATION LEVIES

a. Members to receive and approve the ADMINISTRATION FUND BUDGET for Owners Corporation, as prepared and recommended by the Owners Corporation Manager and Committee, in accordance with the budget and levy schedule included in the meeting attachments. The budget covers the period from **01 September 2025 to 31 August 2026**, as attached, being:

Owners Corporation No.	Administration Budget incl GST
OC 1	$1,296,582.60

b. Members to receive and approve the MAINTENANCE FUND BUDGET for Owners Corporation, as prepared and recommended by the Owners Corporation Manager and Committee, in accordance with the maintenance plan, budget and levy schedule included in the meeting attachments. The budget covers the period from **01 September 2025 to 31 August 2026**, as attached, being:

Owners Corporation No.	Maintenance Budget incl GST
OC 1	$303,417.40

c. Members to resolve that the approved budgets form the basis of the quarterly levies, which are to be paid quarterly in advance on the **first day of September, December, March, and June**, in accordance with lot liability.

9. MAINTENANCE PLAN (s.36 (1) of the Act)

As a Tier One Owners Corporation, pursuant section 36 of the Owners Corporations Act 2006 the Owners Corporation are required to present the maintenance plan of the Owners Corporation at the Annual General Meeting.

A copy of the maintenance plan from Solutions in Engineering is attached to this Notice.

10. ELECTION OF COMMITTEE/CHAIRPERSON (s.100 (1) of the Act)

Members are to note that as per s.100 of the Owners Corporation Act 2006 the Owners Corporation is required to elect a committee of at least 3 and not more than 7 members.

Despite subsection (1), the Owners Corporation by Ordinary Resolution, may resolve that the Committee may have more than 7 members but not more than 12 members – this can be determined at this meeting.

If you wish your nomination to be considered at the Annual General Meeting, please submit the attached nomination form no later than 5:00pm **Wednesday 18th February 2026**.

a. Members to resolve the number of committee positions available.

b. Members are to resolve to accept the individual nominations as presented to the owners at the Annual General Meeting.

c. Members are to note that the Chairperson of each Owners Corporation is elected at the first meeting of the Committee.

d. Members are to note that the Secretary of each Owners Corporation is elected at the first meeting of the Committee.

e. Members to resolve each Owners Corporation Committee shall act as the Grievance Committee as per the Rules of the Owners Corporation or alternatively can elect a subcommittee (working group) to act in that capacity.

Note: A lot owner or proxy is not eligible to be elected as a committee member if the lot owner is in arrears for any amount. The manager cannot be elected chairperson of the owners corporation, but may be elected as secretary.

10.1 DELEGATION OF POWERS TO THE COMMITTEE

To enable the Committee to make decisions on behalf of the Owners Corporation, members must determine what powers or functions they will delegate to the committee.

The owners corporation manager recommends that all the powers or functions of the owners corporation be delegated to the committee except those that cannot be delegated, in line with Section 101 of the Act.

That the Owners Corporations hereby resolve to delegate all of its powers and functions to the Committee other than:
(a) a power or function that requires a unanimous resolution
(b) a power or function that requires a special resolution

A resolution by the Committee that is made in respect to any matter for which the powers have been delegated to it has the effect of a resolution made on behalf of the Owner's Corporation.

11. PENALTY INTEREST (s.29(1) of the Act)

Pursuant to s.29(1) of the Owners Corporation Act 2006 the members are to resolve to authorise interest to be charged on fees in arrears greater than 30 days at the interest rate payable under the Penalty Interest Rate Act 1983. The rate is currently set at 10% and subject to change.

Any penalty interest collected is credited to Administration Fund as income to Owners Corporation.

12. DEBT RECOVERY (s.30, s.31 & s.32 of the Act)

12.1 Members to resolve that the manager arrange for the issue of debt collection and proceedings against the owner/s of lot/s in arrear, once approved by the Owners Corporation Committee and;

12.2 Members to resolve that the debt collection and legal cost/s of these proceedings be invoiced back to the owner/s of lot/s who are being pursued for the arrears.

12.3 Members to resolve that the Owners Corporation may recover, as a debt due from the person or persons in default or breach, the costs, charges and expenses incurred by the Owners Corporation, (but excluding the personal time cost of any person acting in an honorary capacity including the chairperson, secretary, or committee member of the owners corporation) arising out of any default or breach, by any lot owner, or occupier of a lot, of any obligations under the Owners Corporations Act 2006 or the Owners Corporations Regulation 2018 or the Rules of the Owners Corporation.

12.4 Members to resolve that the Owners Corporation may recover from any instigating unit owner the cost of any works undertaken for the use of that unit such as but not limited to: - Title Searches, Key Issue / Recovery, Attendance to record searches or other incidentals.

12.5 Members to resolve whether to instigate SMS reminders, as provided by Property IQ at $0.06 per SMS.

13. GENERAL BUSINESS

To ensure any general business is included in the agenda, submissions must be made in writing no later than seven days prior to the Annual General Meeting. Any submissions received after this deadline will be referred to the newly elected Committee for consideration.

14. MEETING CLOSURE

The chairperson to declare the meeting closed.

Meeting Documents included:

Notice of Annual General Meeting for Owners Corporation
Minutes of the Previous Annual General Meeting
OC Managers Report
Owners Corporation Committee Report
Certificate of Currency
Product Disclosure Statement
01 September 2024 to 31 August 2025 Audited Financial Report
2025/2026 Proposed Annual Budget for Owners Corporation
Long Term Maintenance Plan
Proxy Form
Committee Nomination Form